

Criminal Appeal No.1782 of 2023

11.02.2024

Mr. Manan Ahmed, Advocates

.... For the appellant.

Mr. Sujit Chatterjee, D.A.G.

.... For the State

We admitted this Criminal Appeal No.8873 of 2023 and granted bail to appellant Kajal vide order dated 07.02.2024. Subsequently the learned Deputy Attorney General brought to our notice that the same appellant previously preferred Criminal Appeal No.1782 of 2023 which was also listed for hearing before this Court.

Mr. Sujit Chatterjee, learned Deputy Attorney General for the State submits that preferring of more than one appeal by the same appellant for the self-same cause amounts to cheating upon the Court. Above practice not only tarnishes the image of this Court but unnecessarily increases the number of cases and creates a scope for passing of conflicting order.

Mr. Md. Akterujjaman, learned Advocate for Criminal Appeal No.8873 of 2023 submits that the order of bail granted in above appeal may be recalled and the appeal may be dismissed for being not pressed.

On the other hand Mr. Manan Ahmed, learned Advocate for Criminal Appeal No.1782 of 2023 submits that this appeal was preferred earlier in terms of time. So this one may be entertained and the appellant may be granted bail.

It is true that Criminal Appeal No.1782 of 2023 was filed earlier. But since the same appellant filed above two separate appeals by two separate Advocate to this Court suppression above important facts to this Court and intentionally over burdening this Court with unnecessary cases. We want to get rid of this bad practice and as an exemplary action we are dismissing both the appeals for the self-same cause and by the same appellant.

Accordingly, the Criminal Appeal Nos.8873
2023 and 1782 of 2023 are hereby dismissed.

Md. Masudur Rahman
Bench Officer